 **Government of India Act of 1858**

This significant Act was enacted in the wake of the Revolt of 1857—also known as the First War of Independence or the 'sepoy mutiny'. The act known as the **Act for the Good Government of India**, abolished the East India Company, and transferred the powers of Government, territories and revenues to the British Crown.

The features of this Act were as follows:

1. It provided that India, henceforth, was to be governed by, and in the name of, Her Majesty. It changed the designation of the Governor-General of India to that of Viceroy of India. He (Viceroy) was the direct representative of the British Crown in India. Lord Canning, thus, became the first Viceroy of India.

2. It ended the system of double Government by abolishing the Board of Control and Court of Directors.

3. It created a new office, Secretary of State for India, vested with complete authority and control over Indian administration. The secretary of state was a member of the British Cabinet and was responsible ultimately to the British Parliament.

4. It established a 15-member council of India to assist the Secretary of State for India. The council was an advisory body. The secretary of state was made the Chairman of the council.

5. It constituted the Secretary of State-in-Council as a body corporate, capable of suing and being sued in India and in England.

It must be noted here that "the act in no substantial way altered the system of government that prevailed in India but confined itself to the improvement of the machinery by which the Indian Government was to be superintended and controlled in England"[4].

 **Indian Councils Act of 1861**

After the great revolt of 1857, the British Government felt the necessity of seeking cooperation of the Indians in the administration of their country. In pursuance of this policy of association, three acts were enacted by the British Parliament in 1861, 1892 and 1909. The Indian Councils Act of 1861 is an important landmark in the constitutional and political history of India.

The features of this Act were as follows:

1. It made a beginning of the representative institutions by associating Indians with the law-making process. It, thus, provided that the Viceroy should nominate some Indians as non-official members of his expanded council. In 1862, Lord Canning, the then Viceroy, nominated three Indians to his legislative council—the Raja of Benaras, the Maharaja of Patiala and Sir Dinkar Rao.

2. It initiated the process of decentralisation by restoring the legislative powers to the Bombay and Madras Presidencies. It, thus, reversed the centralising tendency that started from the Regulating Act of 1773 and reached its climax under the Charter Act of 1833. This policy of